

Immigration Act, 1992

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Amending Acts

1. Immigration (First Amendment) Act, 2050 2050.6.27
2. Some Nepal Acts Amendment Act, 2053 2053.8.12

Ratification and Publication Date

3. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 2066.10.7
4. Some Nepal Acts Amendment Act, 2072 2072.11.13

Act No. 30 of the year 2049

An Act Made to Provide for Immigration Arrangements

Preamble: Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. Whereas, it is desirable to regulate and control the entry, presence and departure of foreigners into Nepal and to manage the arrival and departure of Nepali citizens,

This Act is enacted by Parliament in the twenty-first year of the reign of His Majesty King Birendra Bir Vikram Shah Dev. 1. Short Title and Commencement: (1) This Act may be called the ?Immigration Act, 2049.?

(2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,?

(a) ?Immigration? means the procedure of entry, presence and departure of foreigners into Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. Nepal.

(b) ?Foreigner? means any person who is not a citizen of Nepal at the time.

(c) ?Passport? means a passport, travel document or similar permission letter issued by the government of any country for travel abroad, and the term also includes a laissez?passer issued by the United Nations.

(d) ?Visa? means a permission letter issued by the Government of Nepal to a foreigner for entry into and presence within Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. Nepal.

(e) ?Department? means the Department of Immigration established by the Government of Nepal to regulate the entry, presence and departure of foreigners into Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. Nepal and to manage the arrival and departure of Nepali citizens.

(f) ?Office? means an immigration office under the Department.

(g) ?Director General? means the chief of the Department.

(h) ?Immigration Officer? means an officer serving in the Department and Office, and the term also includes the head of an Office.

(i) ?Trekking? means a walking tour undertaken by a foreigner staying overnight, and the term also includes a walking tour up to the base camp undertaken by a foreigner going to climb a mountain peak.

(j) ?Prescribed? or ?as prescribed? means prescribed or as prescribed in this Act or in the Rules made under this Act. 3. Provisions Relating to Entry, Presence and Departure: (1) No foreigner shall enter into or stay in Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.

Nepal without Added by the First Amendment. a passport and a visa. (2) The type, fee and other arrangements relating to visa shall be as prescribed. (3) A foreigner wishing to trek in a prescribed area of Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. Nepal shall, in addition to the visa, obtain permission as prescribed. (4) The fee and other arrangements relating to trekking shall be as prescribed. (5) The point of entry into and departure from Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. Nepal for any foreigner shall be as prescribed. (6) The arrangements relating to the departure from Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. Nepal of a foreigner or the arrival in Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. Nepal of Nepali citizens shall be as prescribed. 4. Conditions to be Observed by Foreigners: (1) The conditions to be observed by foreigners residing in Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. Nepal shall be as prescribed. (2) The conditions to be observed by an agency providing services to a foreigner for visa or trekking shall be as prescribed. 5. Forged Passport or Visa Not to Be Used: (1) No person shall falsify his name, age, nationality or any other matter, give false details, or use or cause to be used a forged passport or visa. (2) No person shall, by presenting a forged passport or visa, enter into, be present in, or depart from Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. Nepal. (3) Added by the First Amendment. No person shall cause any foreigner who does not have a passport and visa issued by the government of a foreign state or by an authority authorised by such government to enter into, be present in, or depart from Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. Nepal. 6. Power to Check or Seize Documents: Any document relating to the entry, presence or departure of a foreigner may be checked at any place and time by an Immigration Officer or by an employee designated by the Director General, and such officer or employee may take possession of the relevant papers. 7.

Duties, Functions and Powers of the Director General: The duties, functions and powers of the Director General shall be as follows: (a) To regulate, manage and control the entry, presence and departure of foreigners into Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. Nepal, and to cause the same to be done. (b) To grant permission to foreigners for trekking. (c) To issue visas and extend the validity of visas as prescribed. (d) Added by the First Amendment. To cancel, in the circumstances as prescribed, a trekking permission granted under clause (b) or a visa issued or validity extended under clause (c). (e) To manage the arrival and departure of Nepali citizens. (f) To perform and cause to be performed other functions as directed by the Government of Nepal from time to time. 8. Investigation of Immigration Offences: (1) Amended by the First Amendment. If the Department or Office receives, directly or indirectly, information that an offence has been or is about to be committed contrary to this Act or the Rules made under this Act, an Immigration Officer designated by the Director General shall investigate and take action in respect of such offence. (2) While investigating an offence under sub?section (1) or collecting

evidence, the Immigration Officer shall have all the powers equivalent to those of the police under prevailing law to arrest a person involved in the offence, to search any place in relation to the offence, to take into his custody any papers or other goods related to the offence, and to prepare a site inspection report. While so investigating, the Immigration Officer may, Amended by the First Amendment. after recording the statement of the accused, release him on bail or on personal bond or surety if reasonable grounds exist, or Added by Some Nepal Acts Amendment Act, 2053. may detain him in custody for up to twenty-five days with the permission of the court: Provided that, as soon as the Immigration Officer commences the investigation of the offence, he shall inform the Director General thereof. (2A) Added by the First Amendment. If an accused who is required to furnish bail or surety under sub-section (2) fails to furnish bail or surety, he may be kept in custody. (3) While conducting an investigation under sub-section (2), the Immigration Officer may, if necessary, consult the government attorney. 9.

Power to Expel: (1) After an Immigration Officer has completed the investigation of an offence in respect of a foreigner under this Act and submitted a report to the Director General, the Director General may, on the basis of such report, regularise such matters as need to be regularised as prescribed, and with the approval of the Government of Nepal, expel such foreigner from Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. Nepal, either specifying a period or without specifying a period, so that he may not re-enter Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. Nepal. (1A) Added by the First Amendment. In respect of a foreigner who is required to obtain a visa and who has already undergone punishment for an act contrary to this Act or the Rules made under this Act or the prevailing law, the Director General may, with the approval of the Government of Nepal, issue an order expelling such foreigner from Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. Nepal, either specifying a period or without specifying a period. (2) Amended by the First Amendment. A foreigner expelled under sub-section (1) or (1A) shall not re-enter Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. Nepal during the period of expulsion. (3) Other arrangements relating to expulsion shall be as prescribed. 10.

Penalties: (1) If any person commits or causes to be committed an offence under section 5, he shall be liable to a fine of up to fifty thousand rupees or imprisonment for up to five years or both. (2) If any person violates or causes to be violated sub-section (2) of section 9, for the first offence he shall be liable to a fine of up to twenty-five thousand rupees or imprisonment for up to two years, and for a subsequent violation, on each occasion he shall be liable to a fine of up to fifty thousand rupees or imprisonment for up to five years or both. (3) An abettor of an offence punishable under sub-section (1) or (2) shall be liable to half the punishment prescribed for the person committing such offence. (4) If any person does any act contrary to this Act or the Rules made under this Act, other than as set out in the foregoing sub-sections, Added by the First Amendment. the Director General may, in addition to recovering any amount of loss determined to be payable by him, Amended by the First Amendment. impose a fine of up to fifty thousand rupees. 11. Appeal: A party dissatisfied with a penalty imposed under sub-section (4) of section 10 may, within thirty-five days, Amended by Some Nepal Acts Amendment Act, 2072. appeal to the High Court. 12. Government of Nepal to Be Plaintiff: The plaintiff in a case under this Act shall be the Government of Nepal. 13. Visa Fee Not Charged: In respect of a foreigner who is in custody during the course of investigation under this Act or prevailing law, no visa fee shall be charged for the period of custody; and in respect of a foreigner against whom a case has been filed, no visa fee shall be charged from the date of filing of such case until the day of completion of imprisonment if a sentence of imprisonment is imposed upon decision of the case, or until the day of payment of the fine if only a fine is imposed. 14.

Power of the Government of Nepal: (1) The Government of Nepal may provide that all or some of the provisions of this Act or the Rules made under this Act shall not apply to foreigners of a certain class, caste, race or nationality, or shall apply only subject to prescribed conditions. (2) If it appears to the Government of Nepal that the national interest may be adversely affected by the entry, presence or departure of any foreigner into Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. Nepal, it may prohibit the entry, presence or departure of such foreigner. 15. Power to Delegate: The Director General may delegate all or some of the powers conferred on him under this Act to other officers or employees under him. 16. Not to Bar Action under Other Prevailing Law: Nothing contained in this Act shall be deemed to bar instituting a case in court against any person under any other prevailing law. 17. Protection for Acts Done in Good Faith: No claim for compensation, no case against any employee, and no other legal proceedings shall lie in respect of any act done or attempted to be done in good faith under this Act. 18. Power to Make Rules: The Government of Nepal may make Rules for the purposes of this Act. 19. Repeal and Savings: (1) The Foreigners Act, 2015 is hereby repealed. (2) All acts and proceedings done under the Foreigners Act, 2015 and the Rules made under that Act shall be deemed to have been done under this Act.